



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 11, 2025

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202309646 (Incident Date: October 12, 2023) regarding Lieutenant Juan Quiroz, Tax No. 939263 (PODS Case No. C-033392)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Lieutenant Juan Quiroz and has determined that his actions do not warrant disciplinary action.

In this matter, Lieutenant Quiroz is alleged to have been discourteous while he interfered with the recording device of an individual. Body-worn camera footage shows the complainant approach and begin recording a peaceful law enforcement interaction between Lieutenant Quiroz, a detective, and a motorist.¹ At some point, the complainant moves closer to the officers and motorist, causing the detective to warn the complainant to back up and record from a further distance. Moments later in the interaction, the complainant focuses his attention on Lieutenant Quiroz. During their interaction, he recorded with his phone within inches of Lieutenant Quiroz's face. This caused Lieutenant Quiroz to take a step back, however, the complainant continued to record from a close distance. After coming within inches of the Lieutenant's shield and then, his face, Lieutenant Quiroz pushed the phone away. During that action, Lieutenant Quiroz stated, "don't put that phone in my face." Lieutenant Quiroz's actions were reasonable and necessary to maintain his personal safety. His actions did not compromise the complainant's ability to continue recording as the complainant never lost possession of his phone. In fact, there was no evidence of an intent to prevent the recording. Additionally, there was also no evidence put forth by CCRB that the Lieutenant acted in a discourteous manner towards the complainant.

¹ There was no personal relationship between the complainant and the motorist.

Therefore, based on the foregoing, Lieutenant Quiroz will not receive any disciplinary action for the alleged misconduct.

Sincerely,


Michael P. Baker

Deputy Chief

Commanding Officer

Police Commissioner's Office